

MONEY MARKET APPLICATION FORM

**Thank you for choosing Simonis Storm Securities for
your investment and financial management needs**

The checklist below will guide you through filling out this mandate efficiently:

1. Type of Account

- ☐ Individual
- ☐ Joint Account
- ☐ Corporate Entity
- ☐ Investment Club
- ☐ Trust

Additional Offerings

- ☐ Short Term Insurance
- ☐ Long Term Insurance
- ☐ Estate Planning
- ☐ Retirement Planning

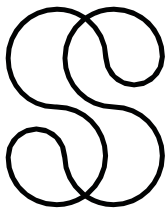
2. Complete the Sections

Individual or Joint Accounts: Sections A, B, C, D, E (if applicable), and F.

Entities (Trust, CC, Private Companies, Clubs): Sections A, B, C, D, F, and G.

3. Supporting Documentation

Please refer to pages 10-11 for a clear guide on which documents are needed for the account type being opened.



Account number:

FIA compliant:

4 Koch Street
Klein Windhoek
PO Box 3970 Windhoek
T: +264 833 254 194
info@sss.com.na
www.sss.com.na

APPLICATION FORM

FORM OF AGREEMENT OF AGENCY PERTAINING TO A MONEY - BROKING TRANSACTION

containing the minimum requirements of the Committee and the Banks Act, 1990, as amended, to which may be added additional terms agreed to between the lender and the broking firm provided such additional terms do not detract from the said minimum requirements.

SECTION A : ACCOUNT HOLDER

Full Name	:		Marital Status	:	ANC	
Nationality	:				COP	
ID number	:				Single	
Passport number	:				Divorced	
Passport expiry date	:				Widowed	
Country of issue	:					
Date of birth	:					
Monthly Income	:					
Citizenships	:					

Entity details: (e.g. CC*, Trust*, Private Company etc.) (If applicable)

Registered name	
Trade name	
Registration number	
Country of registration	
Date of incorporation	
VAT number	
Purpose of opening account	

If the company is a trading company, please detail the primary activities including the industry sector and products produced.

***Please complete only the main member's details on this application form with all additional members on the Additional Persons Form**

Initials

Do you have a family member who is an existing client of Simonis Storm Securities (Pty) Ltd?

☐ Yes ☐ No

If yes, please complete full names and surname and state your relationship:

Full names and surname : Relationship: :
Contact Number :

SECTION B : ADDRESS AND CONTACT DETAILS

Operating / Registered / Residential address

Unit number	:	Complex name	
Street number	:	Street/Farm name	
Suburb	:	City/town	
Country	:	Postal code	

Postal Address

PO Box Number : City/Town :
Suburb :

Primary contact details

Mobile number : Telephone (Res/Bus) :
Email address :

SECTION C : TAX DETAILS

Tax residency self-certification

Tax country (1) :		Tax country (2)	
Tax number (1) :		Tax number (2)	

If you are not registered for tax in any jurisdiction, please provide an explanation

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SECTION D : FINANCIAL BACKGROUND

In order to comply with anti-money laundering regulations, we are required to form a complete understanding of how our clients have accumulated their overall wealth and the assets that we are being asked to manage.

We are unable to accept funds without this information.

Employment details (individuals only):

☐ Salaried ☐ Self-employed ☐ Retired ☐ Minor ☐ Unemployed

Occupation (previous occupation if retired or unemployed)

:

Employer (previous occupation if retired or unemployed)

:

Sector/Industry

:

Note: Both individuals and entities are required to provide source of funds and income.

Source of funds

For compliance purposes, please briefly describe the primary source of your overall wealth and the source of funds for this investment (e.g: salary, inheritance, business profits, sale of assets)

Source of income

Briefly describe the sources of your regular income (e.g. employment income, rental income, pension, etc.).

Are you a Politically Influential Person (PIP) or a Commercially Exposed Person (CEP)?

☐ Yes ☐ No

Are you, any family member or close associate a current or former Prominent Influential Person e.g., senior government official, senior executive of a state-owned enterprise, traditional leader, religious leader or senior executive of an international organisation operating in Namibia?

A PIP is a natural person who is or has at some stage been entrusted with a prominent public function by a state, community institution or an international body and any immediate family members and close associates of the PIP.

A CEP is someone associated with a specific industry which carries a higher exposure to the possibility of bribery and corruption (such as in natural resource extraction, infrastructure construction or the defence industry); an individual who may be regarded as a commercially exposed person because of his or her position as a senior executive of a well-known commercial enterprise.

If 'Yes', please provide details of the position(s) held.

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SECTION E : POWER OF ATTORNEY

If you wish to give power of attorney to any nominated person to provide instructions to us in respect of your account at Simonis Storm (e.g. spouse, partner, family member, parent/guardian of minor, etc.), please request and fill out the the Special Power of Attorney form and provide the required FIA documentation for the nominated person.

The aforementioned forms may be obtained from your wealth advisor.

SECTION F : BANK DETAILS

Please provide bank account details in your name for transfers **(third-party payments are strictly prohibited).**

Primary bank account

Account name :		Account type :	
Bank :		Account number :	
Branch name :		Branch code :	

Secondary bank account

Account name :		Account type :	
Bank :		Account number :	
Branch name :		Branch code :	

***Please ensure that all bank accounts listed above are in your own personal name. No third party payments are allowed.**

SECTION G : ENTITY INFORMATION

All persons named below must complete an Appointed Agent Form.

Executive Chairman (if applicable) Chief Executive Managing Director

Full name

Authorised*

Directors

Full name
Full name
Full name
Full name
Full name

Authorised*

Initials

***Please tick relevant box for all persons mentioned above who are authorised to give instructions on behalf of the company (this must be supported by a Resolution signed by all directors, with all authorised persons completed an Additional Persons Form).**

All shareholders holding 25% or more must complete a Beneficial Ownership Form.

Beneficial Owners		Authorised*		
Full name		<table><tr><td></td><td>%</td></tr></table>		%
	%			
Full name		<table><tr><td></td><td>%</td></tr></table>		%
	%			
Full name		<table><tr><td></td><td>%</td></tr></table>		%
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Full name		<table><tr><td></td><td>%</td></tr></table>		%
	%			
Full name		<table><tr><td></td><td>%</td></tr></table>		%
	%			

If a shareholder is a corporate entity, please provide all supporting documents.

Initials

1. Definitions

In this agreement:

- 1.1 words importing any gender shall include the other gender,
- 1.2 the singular number shall include the plural and vice versa,
- 1.3 "agent" means Simonis Storm (Pty) Ltd. who contracts money broking transactions,
- 1.4 "bank" means
 - (a) any Institution registered in terms of the Banks Act, 1990 (Act No. 94 of 1990 – hereinafter referred to as "the Banks Act"); or
 - (b) any mutual bank registered in terms of the Mutual Banks Act, 1993 (Act No. 124 of 1993);
- 1.5 "committee" in relation to the Namibian Stock Exchange, means the executive authority managing the affairs of the Namibian Stock Exchange.
- 1.6 "money-broking transaction" means the effecting subject to the provisions of paragraph (ff) of the definition of "the business of a bank" in section 1 of the Banks Act, of a money-lending transaction directly between a lender and a bank as borrower:
 - (a) through the intermediation of a stockbroker that does not act as a principal to the transaction;
 - (b) in which the funds to be lent in terms of the money-lending transaction are entrusted by the Lender to the stockbroker subject to a written contract of agency that shall at least contain the substance, and be in the form of this agreement;
 - (c) the subsequent pooling of the funds entrusted by such lender to such stockbroker with funds entrusted to such stockbroker by other lenders, and
 - (d) the depositing of such pooled funds in either a call or fixed deposits account with a bank;
 - (e) in accordance with, and subject to conditions published by Notice in the Government Gazette;
- 1.7 unless the contract otherwise requires, words and expressions defined in the Stock Exchange Control Act, 1985, ("the Act") as amended, the Rules ("Rules") of the Namibian Stock Exchange ("NSX") and the Banks Act shall bear the meanings assigned to them therein and cognate expressions shall be interpreted accordingly.

2. Appointment of Agent

The Lender hereby appoints Simonis Storm (Pty) Ltd. as the Lender's agent with the authority on behalf of the Lender to enter into money-broking transactions.

3. Acknowledgements and Undertakings by Simonis Storm (Pty) Ltd.

- 3.1 Simonis Storm (Pty) Ltd. acknowledges that:
 - 3.1.1 this contract may be terminated at any time at the close of business on the day of receipt of written notice delivered to the Agent by the Lender or by the Agent to the Lender and the Agent shall forthwith notify all banks with which the Agent has contracted on behalf of the Lender which contracts are still outstanding.
 - 3.1.2 this contract shall ipso facto terminate in any of the following events:
 - 3.1.2.1 the death of the Lender or the Agent;
 - 3.1.2.2 the sequestration, provisionally or finally, of the estate of the Agent if a natural person, or a partnership of natural persons;
 - 3.1.2.3 the dissolution, for other causes, of a partnership that is the Agent provided that if, after dissolution, the business of the Agent is continued by a new partnership consisting of inter alia not less than 50 per cent of the partners of the dissolved partnership, this subclause shall not apply;

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- 3.1.2.4 in the case of the agent being a corporation, on the granting of a provisional or final order of winding up of the corporation;
- 3.1.2.5 the Agent becomes a defaulter in accordance with the provisions of Section 8 of the Rules.
- 3.2 In the event of the contract terminating on any of the grounds set out in 3.1.1 or 3.1.2 (other than the death of the Lender) the Committee shall be entitled to apply to the money-broking transaction effected by the Agent and still outstanding such of the provisions of the Rules as the committee may consider reasonable or desirable, strictly limited to the money-broking transactions of the Agent.
- 3.3 Simonis Storm (Pty) Ltd. undertakes:
 - 3.3.1 at all times to act with the utmost good faith towards the Lender;
 - 3.3.2 monthly, in arrears, to deliver, or cause to deliver, to the Lender a statement reflecting in respect of the preceding month:
 - 3.3.2.1 amounts invested and withdrawn;
 - 3.3.2.2 the dates and terms of investments, including interest rates and payment details;
 - 3.3.2.3 the name of the bank with which the money-broking transaction was concluded;
 - 3.3.2.4 the nature of any assets held in safe custody for the Lender and the place at which assets are held; and
 - 3.3.2.5 that a fair and reasonable remuneration has been charged;
 - 3.3.3 to deposit to a call account with a bank, any moneys of the Lender held by the Agent and not committed for the Lender in terms hereof at the time of the close of trade of the Agent's bank. Alternatively, where the institution will send a statement direct to the Lender, the statement referred to in 3.3.2 need reflect only:
 - 3.4.1 the Lender 's closing balance with the institution as at the date of the statement;
 - 3.4.2 a declaration to the effect that the investment had been with the institution throughout that month; and
 - 3.4.3 a declaration that the institution will be sending, directly to the Lender the information required under 3.3.2.1 to 3.3.2.5.

4. Acknowledgement and Undertaking by the Lender

- 4.1 The Lender acknowledges that:
 - 4.1.1 Simonis Storm (Pty) Ltd. is acting as his agent;
 - 4.1.2 he assumes, except in so far as he may in law have the right of recovery against the Agent, all risks connected with the administration by the Agent of the funds entrusted to him by the Lender, as well as the responsibility to ensure that the Agent executes his instructions as recorded in this contract of agency and any amendments thereto concluded in writing by the parties hereto;
 - 4.1.3 neither the NSX nor the Agent shall be liable in any way for any of the obligations of the bank with which the Agent has concluded money-broking transactions on behalf of the Lender; and
 - 4.1.4 he is aware that the Agent, for the purpose of a money-broking transaction only, may pool the Lender's funds with the funds of other Lenders represented by the Agent.
- 4.2 The Lender undertakes that
 - 4.2.1 without the prior written consent of the bank with which the agent has concluded a money-broking transaction, the Lender will not withdraw a fixed deposit from such bank before the expiry of the fixed period or final date specified in the deposit;
 - 4.2.2 he will carefully peruse and consider all statements to be rendered to him pursuant to 3.3.2 above and shall forthwith advise the Agent, in writing, of any money-broking transaction that he wishes to have withdrawn or terminated as soon as the Agent may lawfully procure such withdrawal or termination; and

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he will forthwith notify the Agent in writing if there is anything contained in any statement referred to in 3.3.2 that he does not understand or which he believes is incorrect and, furthermore, will likewise notify the Agent if he does not receive a statement in any month by not later than the 15th day of the month to enable the Agent to ensure delivery to him of the missing statement. If the Lender does not receive a satisfactory explanation from the Agent in reply to the Lender's notification to the Agent, as aforesaid, the Lender shall within a reasonable time advise the General Manager (Administration) of the NSX of such lack of satisfaction and shall at the time deliver, to the General Manager (Administration) of the NSX, a copy of the relevant statements and correspondence.

5. Remuneration of Simonis Storm (Pty) Ltd.

In consideration of the services to be rendered by the Agent to the Lender pursuant to this contract, the Lender shall pay to the Agent a fair and reasonable remuneration.

6. Banking Instructions for Withdrawals

Withdrawals will be paid by Simonis Storm (Pty) Ltd directly into the Lender's bank account designated in Section F above.

7. Money Market Fees

Admin Fee* - N\$ 25

Account Closing Fee** - N\$ 75

***Admin fees are charged on the 1st of every month. Such fees are subject to periodic review and may be adjusted from time to time; clients will be notified in writing of any such changes prior to implementation of this change.**

****The account closing fee is charged upon the closure of your money market account.**

Please note additional fees may apply where applicable

This document contains the sole memorandum of the agreement of agency between the parties. No warranty, representation or terms not contained herein shall be binding on the parties. No modification amendment or the like or the consensual cancellation of this agreement shall be binding unless reduced to writing and signed by or on behalf of the parties.

Read, understood and accepted on behalf of the individual/entity who warrants that he/she is duly authorised.

Signature (Lender)

Name (Lender)

Place

Date

Signature - Simonis Storm Securities (Pty) Ltd (Agent)

Representative - Simonis Storm Securities (Pty) Ltd (Agent)

Place

Date

For Office Use

FOR OFFICE USE : DECLARATION BY COMPLIANCE OFFICER

I, as the appointed compliance officer of Simonis Storm Securities (Pty) Ltd, hereby declare that all relevant supporting documentation as required in terms of the Financial Intelligence Act No.13 of 2012 have been collected, verified and captured.

☐ KYC ☐ Sanctions Screening ☐ Risk Assessment ☐ Data Captured

Signature (compliance officer)

Compliance officer name

Place

Date

DOCUMENT REQUIREMENTS CHECKLIST

INDIVIDUALS (documents no older than 3 months):

- ☐ Certified copy of ID
- ☐ Bank confirmation letter
- ☐ Proof of residence

CLOSED CORPORATIONS (documents no older than 3 months):

- ☐ Certified copy of Founding (Amended) Statement
- ☐ Bank confirmation letter
- ☐ Proof of operating / physical address
- ☐ Resolution nominating Authorized Signatories
- ☐ Certified copies of IDs for all Members & Signatories
- ☐ Proof of residence for all Members & Signatories
- ☐ Appointed Agent Form for all Members & Signatories

PTYs (documents no older than 3 months):

- ☐ Certified copies of Company documents including: Share certificate/s
- ☐ CM29: Listing the Directors of the company
- ☐ CM1: Certificate of Incorporation
- ☐ CM22: Registered Address of the company
- ☐ CM46: Certificate to Commence Business
- ☐ CM9: Certificate of Change of Name (if applicable) CM44: Articles of Association
- ☐ CM2: Memorandum of Association
- ☐ Bank confirmation letter
- ☐ Proof of operating address
- ☐ Resolution nominating Authorized Signatories
- ☐ Certified copies of IDs for all Directors including CEO /
- ☐ MD Proof of residence for all Directors including CEO /MD
- ☐ Appointed Agent Form for all Directors & Signatories

TRUSTS (documents no older than 3 months):

- ☐ Certified copy of Trust Certificate
- ☐ Certified copy of the Trust Deed
- ☐ Resolution to open an investment account with Simonis Storm including,
the nomination of the appointed signatories and how they will sign: E.g.: In own capacity or any two
etc. Appointed Agent Form for all Trustees & Beneficiaries
- ☐ Certified copies of IDs and proof of residence of all signatories, if different from Trustees
- ☐ Certified copies of IDs and proof of residence of the Trustees
- ☐ Certified copies of IDs and proof of residence of the Beneficiaries
- ☐ Bank confirmation letter of the Trust
- ☐ Proof of operating address of Trust – If no physical address, then a signed letter that states from where
the Trust is operated

ASSOCIATIONS / CLUBS (documents no older than 3 months):

- ☐ Certified copy of Constitution
- ☐ Last minutes nominating current serving members Certified
- ☐ copies of IDs for all serving Members & Signatories Proof of
residence for all serving Members & Signatories
- ☐ Appointed Agent Form for all Members & Signatories Bank
confirmation letter of the entity
- ☐ Proof of operating address
- ☐ Resolution nominating Authorized Signatories

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